

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
Amit Yadav,: Index Number:
Date Purchased:
: Date Filed:

Plaintiffs

: SUMMONS

-against- :

City of New York, New York City Police Department, :
Police Officer Joseph Dimauro, Shield 593 of the 7 Precinct
and New York City Police Officers John Doe, ::
Plaintiff's residence is:
: 50 East 102 Street
New York, NY 10029

Defendants

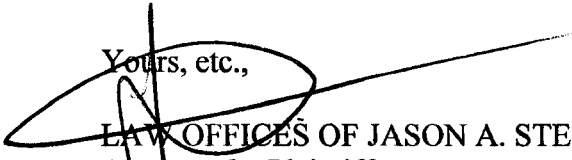
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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in New York County.

Dated: October 26, 2018
Bronx, NY

Yours, etc.,


LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiffs
888 Grand Concourse
Suite 1H
Bronx, NY 10451
(718) 585-2833

To: City of New York

New York City Police Department

Police Officer Daniel Callinan, Shield 17721 of the 23 Precinct

New York City Police Officers John Doe,

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
Amit Yadav,

Plaintiffs

-against-

City of New York, New York City Police Department,
Police Officer Joseph Dimauro, Shield 593 of the 7 Precinct
and New York City Police Officers John Doe,

Defendants
-----X

VERIFIED COMPLAINT

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Amit Yadav (hereinafter referred to as "YADAV") is a resident of New York County, State of New York.
2. That at all times hereinafter mentioned, the Police Officer Joseph Dimauro, Shield 593 of the 7 Precinct, (hereinafter referred to as "DIMAURO") was employed by the New York City Police Department.
3. That at all times hereinafter mentioned, the New York City Police Officers John Doe, the officers involved in the arrest of YADAV, (hereinafter referred to as "DOES") were employed by the New York City Police Department.
4. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

5. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.
6. On or about March 28, 2018 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.
7. That on or about August 10, 2018, a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiff testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.
8. That on or about December 30, 2017 at approximately 11:00PM in the vicinity of 137 Ludlow Street, New York, NY Plaintiff and his girlfriend, Madhuri Patel, (hereinafter referred to as ("PATEL")) had left a local New York bar were down the street when DIMAURO and DOES stopped, handcuffed and arrested them.
9. That at the time of the arrest, PATEL was holding a coat, containing a purse, both of which belonged to someone else.
10. That at all times, PATEL had removed said coat and purse from the bar, left the bar holding them and was arrested holding them.
11. That at no time did Plaintiff ever take, possess or exercise control over the coat or purse.
12. That DIMAURO and DOES reviewed video evidence of only PATEL taking the coat and purse.
13. That at no time did Plaintiff ever engage in any illegal or unlawful behavior.

14. That after Plaintiff was arrested he was transported to the 7 precinct in New York County.
15. That while Plaintiff was inside of said precinct, Plaintiff was held in a holding cell occupied with other males for several hours.
16. That after several hours Plaintiff was transported to New York County Central Booking, located at 100 Centre Street, New York, NY.
17. That on or about December 31, 2017 Plaintiff was released from New York County Central Booking after the New York County District Attorney declined to prosecute the case.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

18. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 17, as if more fully stated herein at length.
19. That Defendants acted with actual malice toward Plaintiff and with willful and wanton malice, indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.
20. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.
21. That as a result of the actions by Defendants, Plaintiff was traumatized and fears his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.
22. That as a result of the Defendants' actions, Plaintiff has been unable to sleep.
23. That as a result of the Defendants' actions, Plaintiff missed several days form work.

24. That as a result of the Defendants' actions Plaintiff sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

25. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 24, as if more fully stated herein at length.

26. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of the Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

27. Defendants having no lawful authority to arrest Plaintiff, did, nevertheless, unlawfully arrest Plaintiff with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS

28. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 27, as if more fully stated herein at length.

29. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

30. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 29, as if more fully stated herein at length.

31. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

32. That during the pendency of the case, Defendants did cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

33. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 32, as if more fully stated herein at length.

34. At all times pertinent hereto, DIMAURO and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

35. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that DIMAURO and DOES committed within the scope of their employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

36. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 35, as if more fully stated herein at length.

37. The City of New York and New York City Police Department's failure to provide adequate training and supervision to DIMAURO and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

**AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

38. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 37, as if more fully stated herein at length.

39. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

40. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

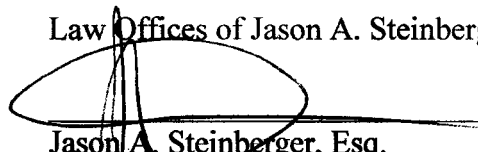
On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

A handwritten signature in black ink, consisting of a large, stylized 'J' and 'S' that overlap significantly, followed by a horizontal line.

Jason A. Steinberger, Esq.

Attorney for Plaintiffs

888 Grand Concourse

Suite 1H

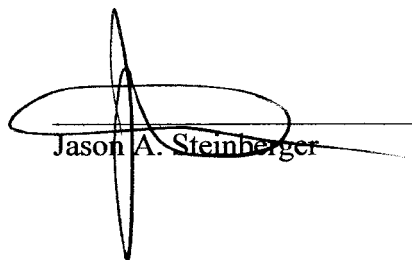
Bronx, NY 10451

(718) 585-2833

STATE OF NEW YORK: COUNTY OF BRONX

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: October 26, 2018



Jason A. Steinberger

Index Number:**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

AMIT YADAV,**Plaintiffs****-against-**

**CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE
OFFICER JOSEPH DIMAURO, SHIELD 593 OF THE 7 PRECINCT AND NEW YORK
CITY POLICE OFFICERS JOHN DOE,****Defendant.**

SUMMONS AND COMPLAINT

LAW OFFICES OF JASON A. STEINBERGER, LLC**888 Grand Concourse****Suite 1H****Bronx, NY 10451**

To:**Attorney (s) for Defendant(s)**

Service of a copy of the within**is hereby admitted.****Dated:**

Attorney(s) for

PLEASE TAKE NOTICE☐**that the within is a (certified) true copy of**☐**entered in the office of the clerk of the within named Court on****NOTICE****OF ENTRY**☐**that an Order of which the within is a true copy will be presented for settlement to the Hon.****NOTICE OF****once of the Judges of the within named Court,****SETTLEMENT****at****on****200 , at m.****Dated:****JASON A. STEINBERGER, ESQ.****888 Grand Concourse, Suite 1H****Bronx, NY 10451****To:****Attorney(s) for**